

HOUSE No. 869

The Commonwealth of Massachusetts

PRESENTED BY:

Danillo A. Sena and Simon Cataldo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to ranked choice voting in the town of Acton.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/6/2025</i>
<i>Simon Cataldo</i>	<i>14th Middlesex</i>	<i>1/16/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/29/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/2/2025</i>

HOUSE No. 869

By Representatives Sena of Acton and Cataldo of Concord, a petition (accompanied by bill, House, No. 869) of Danilo A. Sena and Simon Cataldo (by vote of the town) relative to ranked choice voting in the town of Acton. Election Laws. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3974 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to ranked choice voting in the town of Acton.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. RANKED CHOICE VOTING

2 (a) All offices elected at the annual town election or town special election shall be elected
3 by ranked choice voting, except for a single-seat office when the number of certified candidates
4 is less than or equal to 2 or a multi-seat office when the number of certified candidates is less
5 than or equal to the number of seats to be elected. Ranked choice voting elections shall be
6 tabulated in rounds pursuant to this section.

7 (b) In any single-seat election, each round shall begin by counting the number of votes
8 for each continuing candidate. Each ballot shall count as 1 vote for its highest-ranked continuing

candidate. Concluded ballots shall not be counted for any continuing candidate. Each round shall end with 1 of the following 2 outcomes:

(1) If there are more than 2 continuing candidates, the last-place candidate shall be defeated or the last-place candidates shall be defeated in batch elimination, and a new round shall begin; or

(2) If there are 2 continuing candidates, the candidate with the fewest votes shall be defeated, the candidate with the most votes shall be elected, and tabulation shall be complete.

(c) In any multi-seat election, each round shall begin by counting the number of votes for each continuing candidate. Each ballot shall count, at its current transfer value, for its highest-ranked continuing candidate. Concluded ballots shall not count for any continuing candidate. In the first round only, the election threshold shall then be calculated. Each round shall end with 1 of the following 3 outcomes:

(1) If at least 1 continuing candidate has more votes than the election threshold, then all such candidates shall be elected. Each ballot counting for an elected candidate shall be assigned a new transfer value by multiplying the ballot's current transfer value by the surplus fraction for the candidate. Each elected candidate shall be deemed to have a number of votes equal to the election threshold in all future rounds, and a new round shall begin;

(2) If no continuing candidate has more votes than the election threshold and the sum of the number of elected candidates and continuing candidates is more than the sum of the number of seats to be elected and 1, the last-place candidate shall be defeated or the last-place candidates shall be defeated in batch elimination, and a new round shall begin; or

30 (3) Otherwise, the continuing candidate with fewest votes shall be defeated, all other
31 continuing candidates shall be elected, and tabulation is complete.

32 (d) Batch elimination shall apply to the largest possible group of continuing candidates
33 such that the sum of the votes of candidates in the group is less than the individual number of
34 votes of every continuing candidate not in the group, and provided that the number of continuing
35 candidates not in the group is at least 1 more than the remaining number of positions to elect.

36 (e) If 2 or more last-place candidates are tied and batch elimination does not apply, the
37 candidate with the fewest votes in the prior round shall be defeated. If 2 or more such tied
38 candidates were tied in the prior round, the second tie shall be decided by referring similarly to
39 the standing of the candidates, in terms of votes, in the second-prior round. This process shall be
40 applied successively as many times as necessary, a tie shown in any prior round shall be decided
41 by referring to the standing of the candidates in the round immediately preceding the tie.

42 (f) The Select Board, in consultation with the Town Clerk, may make any changes to the
43 ranked choice voting ballot and tabulation process necessary to ensure the integrity and smooth
44 functioning of the election, provided that ranked choice voting shall still be used and the fewest
45 number of changes are made to achieve such purpose.

46 SECTION 2. This act shall take effect upon its passage. The first election using Ranked
47 Choice Voting shall take place no sooner than 2025.